ESSAY · IN THE REGISTER OF ABRAHAM JOSHUA HESCHEL

A Plate of Ice

Two deportations, the stranger in the Law of Moses, and what a people owes to a fact it has watched ripen.

Richard Verver · October 2026

Heschel said that the prophets do not speak in the register of policy. “To us a single act of injustice, cheating in business, exploitation of the poor, is slight; to the prophets, a disaster.” The prophet is not a man with a better argument. He is a man who cannot sleep. So the first duty of an essay in that register is not to argue. It is to say what happened, slowly enough that it cannot be unheard.

Harjit Kaur came to the East Bay in 1991, a single mother. She sewed at a sari shop in Berkeley for twenty years. She prayed at the gurdwara in El Sobrante. She raised children who raised children, five grandchildren. She had no criminal record. Her asylum claim failed, and after the appeals failed she said she would go, and for thirteen years India did not issue her the papers to go with. So she did what the law asked instead. Every six months she went to the federal building in San Francisco and signed her name, and every year her work permit was renewed. On the eighth of September 2025, at seventy-three, she went to sign her name and did not come home.

She was held in Bakersfield on a floor with no bed. Her dietary law, which the Sikh keeps as the Jew keeps his, was honoured after six days. Her medication came several days in. When she asked for water to take it with, a guard gave her a plate of ice. She wears dentures. She could not eat it. The guard told her it was her fault. On the twentieth she was flown to Georgia. On the twenty-second, at two in the morning, in handcuffs, without word to her lawyer or her family, she was put on a plane to a country she had left when the Soviet Union still existed. For a day and a night no one knew where she was. Her family had bought her a ticket. They had asked for forty-eight hours with an ankle monitor to settle a life. The agency’s statement, which misspelled her name, said she would not waste any more tax dollars.

Mohan Karki was born in a refugee camp in Nepal to parents whom Bhutan had expelled for being of the wrong descent. Nepal would not call him a citizen. Bhutan never had. The United States resettled him, lawfully, as a child. He lived in a suburb of Columbus. His wife is Tika Basnet. He went to a routine check-in on the eighth of April 2025 and was taken. His daughter was born in June. He has not held her. In January 2026, after a judge’s stay and a habeas petition and eight months in county jails that do not permit a parent to visit, he was flown through Delhi to Bhutan, a country he has never seen. Of the two dozen men sent there the spring before, at least four were refused at the door and pushed into India, and several are missing.

Heschel wrote that in a free society, “few are guilty, but all are responsible.” He also wrote the sentence that has become the epitaph of every quiet century: “indifference to evil is worse than evil itself.” The guard with the plate of ice is guilty. The rest of us are something else, and the something else is the subject.

Consider what the law of Moses says about the stranger, because it is not what either party says. “You shall not oppress a stranger, for you know the heart of a stranger, seeing you were strangers in the land of Egypt” (Ex 23:9). The command is grounded not in the stranger’s rights but in Israel’s memory. And then Ezekiel, speaking of the land to be divided again after exile: “the strangers who sojourn among you, who have begotten children among you, shall be to you as the native-born among the children of Israel; they shall be allotted an inheritance with you” (Ez 47:22). Read that twice. The children are the ratification. The stranger who has begotten children among you is no longer a stranger, not by the decree of a king but by the fact of the children. The law does not make him a member. The law notices that he is one.

This is the oldest thing we know about a people. Augustine said a people is a multitude bound by agreement on the things it loves. The bonds come first: the marriage, the friendship, the shop, the gurdwara, the grandchildren at the table. The state comes after, and its proper work with respect to those bonds is to record them. The Church’s own law understands this so well that it has never had a category for an illegal person. Three months of residence and you belong to the parish. Five years and you have a domicile. The wanderer with no home anywhere has as his pastor the pastor of wherever he is standing. Membership is a fact that ripens, and the law’s job is to write it down when it has ripened.

The Catechism gives the state its due here, and the prophetic register must not pretend otherwise. A nation may set conditions on entry for the common good; the stranger owes the laws obedience; the welcome is “to the extent they are able.” So this is not an essay against borders. Aquinas himself approved a people that received the peaceful foreigner at once and made him a full citizen only after time. Time is the whole of it. Thirty-three years is time. A child born here is time. The question Ezekiel answers and the United States declines to ask is what the law owes to a fact it has watched ripen for a generation. For thirty years there has been no mechanism by which a Harjit Kaur becomes what she already is. The law refused to notice, and then punished her for the thing it refused to notice.

Call the punishment by its name. The Church’s penal law knows a residence prohibition as a penalty, and it knows that a penalty requires a crime, judged, of the person’s own act. What fell on Mrs. Kaur has the whole shape of a penalty. The handcuffs, the night transfer, the floor without a bed, the exile. It has no crime under it. Her act was to sign her name every six months for thirteen years. Of the people in the government’s custody that week, seven in ten had never been convicted of anything. A penalty without a delict is not law. Augustine and Aquinas have a word for it: not a law but a perversion of law, which does not bind. The prophets have a shorter one.

And here is where the state makes itself an idol. Pharaoh’s sin was not that he had borders. It was that he looked at a people who had grown up in his land and decided, by decree, that they were not a people.

When a state claims the power to define who its own community is, rather than to recognise it, it has placed itself before the bonds that made it, and a thing that places itself before its own origin is the oldest sin there is. Heschel said that at the first conference on religion and race the main participants were Pharaoh and Moses. The first hearing on immigration was held in the same room.

Heschel knew something about night transfers. In October 1938 the Gestapo took him from his rooms in Frankfurt and put him over the Polish border with seventeen thousand others, many of whom had lived in Germany for decades, some of whose children had never seen Poland. He did not spend his life on the comparison, and neither should we. He spent it on the question underneath, which is how ordinary people in a lawful country manage not to see what is being done in their name on a Monday at two in the morning. His answer was that the opposite of good is not evil. It is indifference, and indifference is a discipline we practise until we are good at it.

What, then? Not a program. The Little Way is the only register in which the answer is sayable. Go to the check-in with your neighbour. Two hundred people stood in El Sobrante on a Friday in September, and it did not stop the plane, and it was not nothing. Day said we are not asked to be successful but faithful. Heschel, marching at Selma, said he felt his legs were praying. A grandmother is in Punjab. A father is somewhere between Bhutan and India, or nowhere. The children they begot among us are still here, and by the oldest law we have, so are they.

SOURCES Richmondside on Harjit Kaur's deportation, NBC News on her detention at a check-in, Richmond Standard on the rally, Matter News on Mohan Karki, NPR via KUOW on deportees to Bhutan, Guardian summary on Karki's January 2026 removal.

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